
THE ESSAYS OF FRANCIS BACON

these do but corrupt the stream, the other corrupteth the fountain. So saith Solomon, "Fons turbatus et vena corrupta est justus cadens in causa sua coram adversario."¹ The office of judges may have reference unto the parties that sue, unto the advocates that plead, unto the clerks and ministers of justice underneath them, and to the sovereign or state above them.

First, for the causes or parties that sue. "There be (saith the Scripture) that turn judgment into wormwood"; and surely there be, also, that turn it into vinegar; for injustice maketh it bitter, and delays make it sour. The principal duty of a judge is to suppress force and fraud; whereof force is the more pernicious when it is open, and fraud when it is close and disguised. Add thereto contentious suits, which ought to be spewed out, as the surfeit of courts. A judge ought to prepare his way to a just sentence, as God useth to prepare his way, by raising valleys and taking down hills. So when there appeareth on either side an high hand, violent prosecution, cunning advantages taken, combination, power, great counsel, then is the virtue of a judge seen to make inequality equal, that he may plant

¹ A righteous man falling down before the wicked is as a troubled fountain and a corrupt spring.